



Terms of Service

A daily news magazine for the real estate industry.

Written by producers, for producers.

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1. Agreement to These Terms

Welcome to The Housing News. These Terms of Service ("Terms") govern your access to and use of thehousingnews.com and any related services, newsletters, content, and features (collectively, the "Service"). The Service is published by 1691 Inc. ("we," "us," or "our").

By accessing or using the Service, you agree to be bound by these Terms and our Privacy Policy. If you do not agree, do not use the Service.

2. Who We Are

The Housing News is a daily news magazine written by producers for producers. Our audience includes real estate agents, brokers, team leaders, brokerage owners, mortgage and title professionals, and others working in the housing industry. Content is editorial in nature and reflects the perspectives of its authors and contributors.

3. Editorial Content and Information Disclaimer

All content on the Service is provided for informational and educational purposes only. Articles, commentary, interviews, market notes, and other content represent the views of the authors at the time of publication. Nothing on the Service constitutes:

- Legal, financial, tax, investment, accounting, or brokerage advice
- A recommendation to buy, sell, or list any specific property
- A solicitation of any real estate transaction in any jurisdiction
- Professional guidance for your specific business or personal situation

Real estate, lending, and related industries are regulated at the federal, state, and local levels. You are responsible for confirming the current accuracy of any information before acting on it and for consulting qualified professionals licensed in your jurisdiction.

We make reasonable efforts to publish accurate and timely information, but we do not warrant that content is complete, current, or free from errors. Markets, laws, and conditions change rapidly. Information that was accurate when published may become outdated.

4. Eligibility

You must be at least 18 years old and legally able to form a binding contract to use the Service. By using the Service, you represent that you meet these requirements.

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Some features may require you to create an account or subscribe to a newsletter or paid offering. If you create an account, you agree to:

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The Housing News is read and used by licensed real estate professionals who are bound by federal law, state license law, MLS rules, and, where applicable, the National Association of REALTORS® Code of Ethics. If you are a licensed real estate agent, broker, mortgage originator, appraiser, or other regulated professional, you acknowledge that any content you post, submit, or share on the Service (including comments, op-eds, forum posts, tips, social shares, and replies) is subject to the same legal and ethical obligations that govern your professional conduct offline.

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- Discriminates against, expresses a preference for or against, or limits opportunities for any person based on race, color, religion, sex, disability, familial status, national origin, sexual orientation, gender identity, source of income, or any other class protected under federal, state, or local fair housing law
- Describes neighborhoods, buildings, schools, or communities using demographic characteristics or coded language (including but not limited to "safe," "family-friendly," "good schools," "changing," "up-and-coming," or similar phrases used as proxies for protected class characteristics)
- Engages in or promotes steering, blockbusting, redlining, or any practice that directs, channels, or discourages housing consumers based on protected class status
- Solicits or responds to housing preferences expressed in terms of protected class characteristics, even when requested by a client

Antitrust and Commissions

- Discusses, suggests, recommends, or implies any specific commission rate, commission split, commission floor or ceiling, or coordinated pricing among competing brokerages or agents
- Proposes, agrees to, or invites coordination among competitors regarding fees, commissions, listing terms, buyer broker compensation, market allocation, refusal to deal with specific competitors or business models, or boycotts of any company or platform



- Characterizes commission rates as "standard," "customary," "typical," or "market" in a manner that could suggest price coordination among independent firms

Commissions and fees are negotiable and set independently by each brokerage. Discussion of antitrust topics should be limited to factual reporting, legal analysis, or commentary about your own firm's practices.

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- Discloses confidential client information, including client identities, financial details, motivations, negotiating positions, offer terms, or any other information obtained in the course of an agency relationship, without the client's express written consent
- Identifies parties to a specific transaction, including by name, address, or other identifying details, in a way that could breach fiduciary or statutory confidentiality duties
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- Reproduces, redistributes, scrapes, or republishes MLS listing data, photographs, virtual tours, or other listing content in violation of the rules of any MLS, association, or data licensor
- Posts listings or property details that you are not authorized to share, including listings belonging to other brokerages or agents
- Uses listing photographs, descriptions, or marketing materials owned by another agent, brokerage, or photographer without permission

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- Offers or solicits anything of value in exchange for referrals in a manner that would violate the Real Estate Settlement Procedures Act (RESPA) or comparable state law
- Makes statements regarding loan products, rates, terms, or qualifications that would constitute unlicensed mortgage activity or violate TRID, ECOA, TILA, or other lending regulations
- Provides legal, tax, or appraisal opinions that exceed the scope of your real estate license
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OUR TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THESE TERMS OR THE SERVICE WILL NOT EXCEED THE GREATER OF: (A) THE AMOUNTS PAID BY YOU TO US IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE LIABILITY, OR (B) ONE HUNDRED U.S. DOLLARS (\$100).

Some jurisdictions do not allow the exclusion or limitation of certain damages, so some of the above limitations may not apply to you.

15. Indemnification

You agree to indemnify, defend, and hold harmless 1691 Inc., its affiliates, and their respective officers, directors, employees, contributors, and agents from and against any claims, liabilities, damages, losses, costs, and expenses, including reasonable attorneys' fees, arising out of or related to: (a) your use of the Service, (b) your User Content, (c) your violation of these Terms, including without limitation Section 8, or (d) your violation of any law, regulation, license requirement, MLS rule, association rule, or third-party right.

16. Termination



We may suspend, modify, or terminate your access to the Service at any time, with or without notice, for any reason. Upon termination, the provisions of these Terms that by their nature should survive termination will survive, including provisions regarding intellectual property, disclaimers, limitations of liability, indemnification, and dispute resolution.

17. Governing Law and Dispute Resolution

These Terms are governed by the laws of the State of Illinois, without regard to its conflict of laws principles. Any dispute arising out of or related to these Terms or the Service will be resolved exclusively in the state or federal courts located in Cook County, Illinois, and you consent to the personal jurisdiction and venue of those courts.

You and 1691 Inc. each waive any right to a jury trial. Any claim must be brought within one (1) year after the cause of action arises, or it is permanently barred.

18. Changes to These Terms

We may update these Terms from time to time. When we do, we will revise the Effective Date at the top of this page. Material changes will be communicated through the Service or by email when reasonable. Your continued use of the Service after the changes take effect constitutes your acceptance of the revised Terms.

19. Miscellaneous

If any provision of these Terms is found unenforceable, the remaining provisions will continue in full force and effect. Our failure to enforce any right or provision is not a waiver of that right or provision. These Terms, together with the Privacy Policy and any other policies posted on the Service, constitute the entire agreement between you and 1691 Inc. regarding the Service.

You may not assign or transfer these Terms without our prior written consent. We may assign these Terms at any time without notice.

20. Contact

Questions about these Terms can be directed to:

1691 Inc.

Publisher of The Housing News

Email: legal@thehousingnews.com

Web: thehousingnews.com





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